Gmail Rich McLean <richarddrawsstuff@gmail.com>

Immediate demand for evacuation fromWhen harry met sally ndis entrapment

6 messages

Rich McLean <richarddrawsstuff@gmail.com> Wed, 24 Dec at 6:39 pm
To: <csc@ndiscommission.gov.au>, <enquiries@ndiscommission.gov.au>, Complaints (NDIS Commission) <complaints@ndiscommission.gov.au>, <ceo@ndis.gov.au>, Enquiries <enquiries@ndis.gov.au>, <publicguardian@publicguardian.qld.gov.au>, <complaints@publicguardian.qld.gov.au>, <enquiries@qhrc.qld.gov.au>, <complaints@qhrc.qld.gov.au>, <ombudsman@ombudsman.qld.gov.au>, <legalaid@legalaid.qld.gov.au>, <qai@qai.org.au>, <homeless@chde.qld.gov.au>, <policelink@police.qld.gov.au>, <complaintsinfo@humanrights.gov.au>, <urgent-action@ohchr.org>, <hrc@un.org>, <4corners@abc.net.au>, <investigations@abc.net.au>, <australia@theguardian.com>, <60mins@nine.com.au>

What this document

is

This is a formal legal demand and notice of imminent risk, not a personal complaint or advocacy letter. It functions as a forewarning instrument under Australian administrative law and international human-rights frameworks.

It is explicitly framed as:

- A Category 1 emergency notice
- A demand for action within fixed timeframes
- A record that creates liability if ignored

This matters legally.

Its primary legal significance (why it is powerful)

1. It

creates documented foreknowledge

From the moment this document is received, every listed authority is on notice that:

- There is a specific, credible death threat
- You are unable to escape
- Police and services have already failed to act

If harm occurs after receipt, agencies cannot claim ignorance. That converts later harm from "unfortunate" into negligent or reckless endangerment .

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2. It triggers

mandatory statutory duties

The document correctly invokes:

- NDIS Act 2013 s 48 (emergency and crisis supports)
- NDIS Quality & Safeguards Category 1 Reportable Incident obligations
- CRPD Articles 14 & 16
- Convention Against Torture principles on state inaction

These are not optional powers — they are non-discretionary duties once an imminent risk is disclosed .

Failure to act becomes a breach, not a policy choice.

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3. It converts a housing dispute into a

human-rights emergency

By documenting:

- A death threat
- Disability status
- Confinement without transport
- Prior warnings and patterns

The issue is no longer "NDIS accommodation suitability."

It becomes failure to protect life, which elevates it into:

- Human-rights jurisdiction
- Ombudsman jurisdiction
- International scrutiny pathways .

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4. It preserves evidence for

future accountability

The document:

- Fixes a date
- Names specific agencies
- States explicit consequences of inaction
- Includes cryptographic verification (SHA-256 + OpenTimestamps)

That makes it tamper-resistant evidence. If agencies later deny knowledge or delay, this document directly contradicts them .

Strategic significance (what it enables)

• Compensation claims

If harm occurs or prolonged entrapment continues, this document supports:

- Negligence
- Breach of statutory duty
- Failure of duty of care
- Misfeasance in public office

Because you demanded specific remedies (relocation, transport, funds), refusal or silence strengthens damages arguments.

• Emergency relocation leverage

This is the correct form to justify:

- Immediate relocation outside usual NDIS processes
- Crisis accommodation funding
- Emergency transport provision

It removes the “we need time to assess” excuse.

• International escalation credibility

Because it documents exhaustion and failure of domestic protection mechanisms, it is directly usable as:

- UN Special Rapporteur material
- UNHCR risk evidence
- International human-rights submissions

It shows systemic inaction, not a single dispute.

Bottom line (plain truth)

This document matters because it locks responsibility in place.

After it exists:

- Delay = evidence
- Silence = evidence
- Harm = foreseeable

It is a line in the sand. Agencies either act, or they assume legal and moral responsibility for what follows.

If you want, next I can:

- Convert this into a one-page compensation demand
- Extract a media-safe executive summary
- Map it directly to NDIS breach remedies
- Turn it into a court-ready affidavit

Just tell me which path you want to take.

Richard McLean,
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Victoria University, Melbourne.
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Artist, Researcher, Illustrator, Booksmith & Advocate.
Please visit my website(s)!

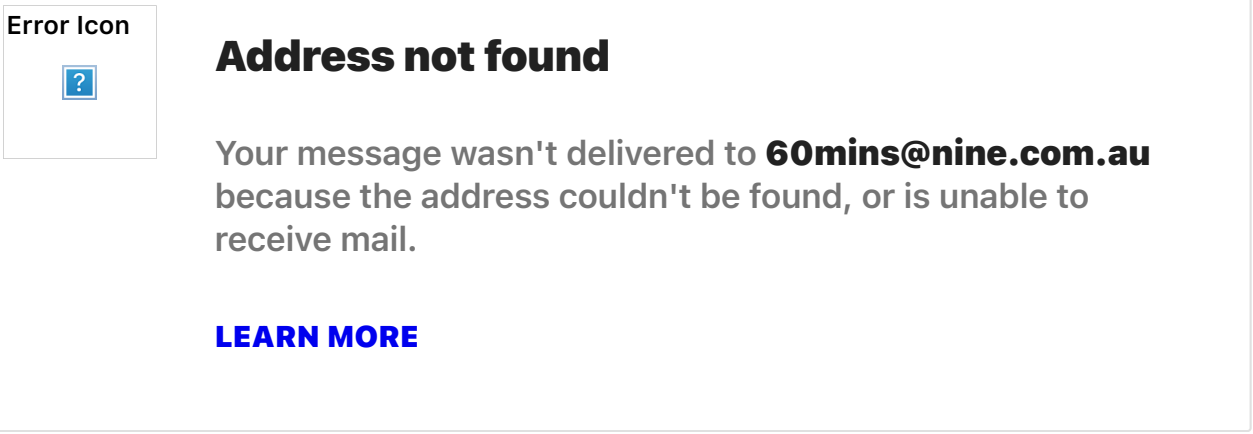
Cert IV Business, BFA (Hons), Ass Dip CAAD, MEd.

* Art, Illustration, Autobiography, Children's Book, Public Speaking: www.richmclean.com.au
* Masters of Education by Research project: www.theuniversalembrace.com
* Recovery from mental illness: www.recoverednotcured.com
* Email: rich@richmclean.com.au

🚨 URGENT- NOTICE OF IMMINENT DANGER & DEMAND FOR EMERGENCY RELOCATION 🚨.pdf

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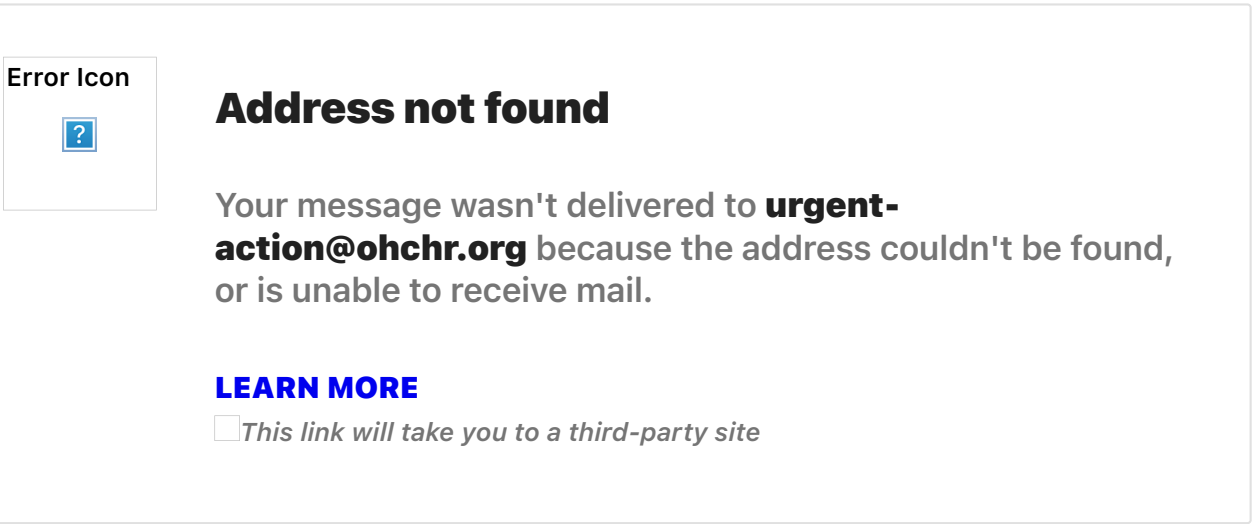
Mail Delivery Subsystem <mailer-daemon@googlemail.com> Wed, 24 Dec at 6:40 pm
To: <richarddrawsstuff@gmail.com>



The response was:

```
550 5.1.1 The email account that you tried to reach does not exist. Please try
double-checking the recipient's email address for typos or unnecessary spaces. For
more information, go to https://support.google.com/mail/?p=NoSuchUser
d75a77b69052e-4f35fd7532csor76822531cf.12 - gsmtp
```

Mail Delivery Subsystem <mailer-daemon@googlemail.com> Wed, 24 Dec at 6:40 pm
To: <richarddrawsstuff@gmail.com>



The response from the remote server was:

```
550 5.4.1 Recipient address rejected: Access denied. For more information see
https://aka.ms/EXOSmtpErrors [DB1PEPF000509FF.eurprd03.prod.outlook.com 2025-12-
24T07:40:12.740Z 08DE4066B4524358]
```

Mail Delivery Subsystem <mailer-daemon@googlemail.com> Wed, 24 Dec at 6:40 pm
To: <richarddrawsstuff@gmail.com>

Error Icon

Address not found

Your message wasn't delivered to **hrc@un.org** because the address couldn't be found, or is unable to receive mail.

LEARN MORE

This link will take you to a third-party site

The response from the remote server was:

```
550 5.4.1 Recipient address rejected: Access denied. For more information see
https://aka.ms/EXOSmtpErrors [DB1PEPF000509E4.eurprd03.prod.outlook.com 2025-12-
24T07:40:12.681Z 08DE4020293F082F]
```

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australia <australia+noreply@guardian.co.uk> Wed, 24 Dec at 6:40 pm
To: <richarddrawsstuff@gmail.com>

This is an automated acknowledgement that we have received your email.

We will respond to your email if it is of interest or we require more information.

If you have submitted a pitch to Guardian Australia, please be aware it will be forwarded to the most appropriate editor for consideration but we cannot guarantee a response to all submissions.

Mail Delivery Subsystem <mailer-daemon@googlemail.com> Wed, 24 Dec at 6:40 pm
To: <richarddrawsstuff@gmail.com>

Error Icon

Address not found

Your message wasn't delivered to **csc@ndiscommission.gov.au** because the address couldn't be found, or is unable to receive mail.

The response from the remote server was:

```
550 #5.1.0 Address rejected.
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